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Case Number: 24PSCV03862 Hearing Date: September 16, 2026 Dept: 6

CASE

NAME: Ara

Bekmezian v. General Motors LLC, et al.

Plaintiff

Ara Bekmezian's Motion for Attorneys' Fees, Costs, and Expenses

TENTATIVE

RULING

The Court GRANTS Plaintiff Ara Bekmezian's Motion for Attorneys' Fees, Costs, and Expenses in the amount of \$34,863.43, comprised of \$30,740.00 in attorney fees and \$4,123.43 in costs and expenses.

Plaintiff is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is a lemon law case. On November 12, 2024, plaintiff Ara Bekmezian (Plaintiff) filed this action against defendants General Motors LLC (General Motors), Martin Automotive, Inc. (collectively, Defendants), and Does 1 through 30, alleging causes of action for fraud and deceit, breach of written warranty pursuant to the Magnuson-Moss Warranty Act, breach of implied warranty pursuant to the Magnuson-Moss Warranty Act, breach of written warranty pursuant to the Song-Beverly Consumer Warranty Act, breach of implied warranty pursuant to the Song-Beverly Consumer Warranty Act, violation of Business & Professions Code § 17200, et seq., violation of Business & Professions Code

§ 17500, et seq., negligence, and strict liability.

On April 27, 2026, Plaintiff moved for attorneys' fees, costs, and expenses. On September 2, 2026, General Motors opposed the motion. On September 4, 2026, Plaintiff replied to General Motors' opposition.

LEGAL

STANDARD

"The following items are allowable as costs under Section 1032:... (10) Attorney's fees, when authorized by any of the following: (A) Contract. (B) Statute. (C) Law." (Code Civ. Proc., § 1033.5, subd. (a)(10).) "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).)

The party seeking fees and costs bears the burden to show "the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (*Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 104.) To satisfy this burden, evidence and descriptions of billable tasks must be presented in sufficient detail, enabling the court to evaluate whether the case was overstaffed, the time attorneys spent on specific claims, and the reasonableness of the hours expended. (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 486-487.)

"A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the 'careful compilation of the time spent and reasonable hourly compensation of each attorney... involved in the presentation of the case.'" (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1321.) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. [Citation.] The court may also consider whether the amount requested is based upon unnecessary or duplicative work. [Citation.]" (*Wilkerson v. Sullivan* (2002) 99 Cal.App.4th 443, 448.)

“The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom [citation], and this includes the determination of the hourly rate that will be used in the lodestar calculus. [Citation.]” (569 E. Cnty. Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 436-437.)

A verified fee bill is prima facie evidence that the costs, expenses, and services listed were necessarily incurred. (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.)

PRELIMINARY ISSUES

Plaintiff's motion attributes a quotation to Ketchum v. Moses (2001) 24 Cal.4th 1122 not found in that case. Specifically, Plaintiff's motion reads: “In determining a reasonable attorney's fee, the court's first step is to calculate a ‘lodestar’ by multiplying the number of hours it finds the prevailing party reasonably expended on the litigation by a reasonable hourly rate.” (Motion, 7:23-25.) Plaintiff's motion contains another misattributed quotation to Vo v. Las Virgenes Municipal Water Dist. (2000) 79 Cal.App.4th 440. Specifically, Plaintiff's motion reads: “absent circumstances rendering the award unjust, fees recoverable under section 1021.5 ordinarily include compensation for all hours reasonably spent, including those necessary to establish and defend the fee claim.” (Motion, 8:7-9.) These are not the only misattributed quotations in Plaintiff's motion. The Court will discuss this further with Plaintiff's counsel at the hearing on this motion.

DISCUSSION

Summary of Arguments

Plaintiff

seeks attorney fees, costs, and expenses in the amount of \$82,383.00 consisting of \$54,452.00 in attorney fees, a 1.5 lodestar multiplier of \$27,226.00, and \$705.00 in assistant fees, plus \$4,146.13 in costs and expenses. Plaintiff contends to be the prevailing party under Civil Code section 1794, subdivision (d),

based on Plaintiff having accepted General Motors' 998 offer. Plaintiff contends the lodestar method is mandatory and that counsel's hourly rates of \$550.00 to \$750.00 are reasonable, supported by counsel's specialized lemon-law experience and numerous recent Los Angeles Superior Court orders approving the same rates. Plaintiff argues the hours billed were reasonably necessary to investigate the vehicle's defects, respond to and propound multiple sets of written discovery to General Motors and the dealership, coordinate an expert inspection, prepare for mediation, and reach settlement. Plaintiff contends a 1.5 multiplier is warranted by the contingent nature of the representation, the risk of nonpayment, counsel's skill, and the favorable result obtained. Plaintiff also seeks fees incurred in preparing this motion and asks that General Motors be ordered to pay within thirty days of judgment.

In opposition, General Motors contends the request is excessive for a routine Song-Beverly matter that settled within statutory limits and presented no novel legal or factual issues. General Motors argues Plaintiff's counsel's rates are unsupported and should be set using the 2021 Real Rate Report, yielding roughly \$252.00 for partners and \$231.00 for associates, rather than the Washington, D.C.-based Adjusted Laffey Matrix. General Motors identifies fifteen categories of purportedly clerical, duplicative, templated, block-billed, and post-settlement entries, and separately seeks to strike 9.8 hours of speculative "estimated" future time not yet incurred. General Motors maintains that no multiplier is justified because the case was not exceptional and contingent risk is reduced where section 1794, subdivision (d), makes fees mandatory to a prevailing buyer. General Motors requests total reductions of 57.9 hours (\$36,054.00), leaving a reasonable award of no more than \$18,398.00, and notes that costs were resolved on its earlier motion to tax costs.

In reply, Plaintiff argues that his verified billing records and declarations are prima facie evidence that the time was reasonably incurred, and that General Motors offers only attorney argument and after-the-fact estimates without any billing-expert declaration. Plaintiff contends General Motors' rate evidence is outdated, i.e., invoice data through the third quarter of 2021 for work performed in 2024 through 2026, and that it rests on an averaging of two datasets the report does not call for, while recent Los Angeles rulings, including matters against General Motors, approve the same rates. Plaintiff

defends the challenged hours as reasonable when incurred, explaining the pre-filing investigation, the separate purposes of the two vehicle inspections, the volume of discovery directed to two defendants, and the necessity of reviewing hundreds of pages of responses, and he notes an arithmetic error in General Motors' second-set reduction. Plaintiff argues that the estimated reply and hearing time has now actually been incurred and remains compensable, and that brief post-acceptance client communications were necessary to implement the settlement. Plaintiff maintains that a multiplier remains appropriate given contingency risk, delay in payment, preclusion of other work, and the result obtained, and requests an enhancement in the amount the Court deems appropriate.

Analysis

Prevailing

Parties

There is no dispute that Plaintiff is the prevailing party and therefore entitled to recover attorney fees and costs. Plaintiff's motion claims Plaintiff is the prevailing party under Civil Code section 1794, subdivision (d), based on Plaintiff having accepted General Motors' 998 offer, wherein General Motors agreed to pay Plaintiff's attorney fees, costs, and expenses in an amount to be determined by motion. (Motion, 5:3-11.) General Motors' opposition does not dispute this claim. (See generally Opp.; see also *D.I. Chadbourne, Inc. v. Superior Court* (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion, "it is assumed that [nonmoving party] concedes" that ground].) The Court nevertheless admonishes Plaintiff for failing to provide a copy of the settlement agreement with the moving papers so that the Court could verify Plaintiff's claims.

Hourly Rates

The Court finds Plaintiff's counsel's hourly rates excessive for the East Judicial District. "The courts repeatedly have stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom [citation], and this includes the determination of the hourly rate that will be used in the lodestar calculus. [Citation.]" (569 E. Cnty. Boulevard LLC v. Backcountry Against the Dump, Inc. (2016) 6 Cal.App.5th 426, 436-437.) The Court will

therefore reduce Hovanes Margarian's rate to \$600.00 an hour, Shushanik Margarian's rate to \$500.00 an hour, and Patrick Kimball's rate to \$550.00 an hour. (See *Mikhaeilpoor v. BMW of N. Am., LLC* (2020) 48 Cal.App.5th 240, 246-247 (*Mikhaeilpoor*) [trial courts vested with discretion in determining appropriate hourly rates in fee motions].) This determination considers the complexity of the case, the quality of services provided, and the attorneys' experience.

Hours Expended

Plaintiff also provided a verified fee bill, which is prima facie evidence that Plaintiff's fees and costs listed therein were necessarily incurred. (*Hovanes Margarian Amended Decl., Ex. A; Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682.) Defendant therefore bears the burden of challenging the specific portions of the fee bill it contends are improper or unreasonable. (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564 [burden is on challenging party to point to specific items challenged with sufficient argument and citations to the evidence, and failure to raise specific challenges in the trial court forfeits the claim on appeal].) As noted above, Defendant disputed many entries.

The Court finds Plaintiff's claimed fees somewhat excessive. This case has been pending for almost two years, but settled a little over a year after it was filed, and contains no motion practice except for this fee motion and the prior motion to tax costs. Moreover, there was nothing particularly complex or unique about this case. The issues involved were applicable to other consumers' vehicles, thereby triggering economies of scale in terms of Plaintiff's counsel's efficiency in litigating this type of lemon law case. Litigating this matter "should not have required anything more than [a] slight factual modification to [an] existing boilerplate." (See *Mikhaeilpoor*, supra, 48 Cal.App.5th at p. 250.) It also appears that some clerical tasks were billed for by attorneys.

Moreover, the Court finds that the assistant's tasks appear to be clerical work requiring no legal experience or skill and will not be awarded. Courts have acknowledged some tasks may "be characterized as noncompensable administrative tasks, such as filing and serving documents." (*Collins v. City of Los Angeles* (2012) 205 Cal.App.4th 140, 159; accord *Missouri v. Jenkins by Agyei* (1989) 491 U.S. 274, 288, fn. 10

["purely clerical or secretarial tasks should not be billed at a paralegal rate, regardless of who performs them"].) Therefore, the Court will not award the attorney's fees sought in the amount of \$705.00.

Considering the foregoing discussion and in view of the totality of the circumstances, the Court finds that the total amount of reasonable attorney fees in this case, using a lodestar methodology, is as follows:

1. 6.10 hours

for attorneys Hovanes Margarian, multiplied by a \$600.00 hourly rate = \$3,660.00;

2. 51.30 hours

for attorney Shushanik Margarian, multiplied by a \$500.00 hourly rate = \$25,650.00;
and

3. 2.60 hours

for attorney Patrick Kimball, multiplied by a \$550.00 hourly rate = \$1,430.00

4. Total

Attorney Fees = \$30,740.00

The Court finds this to be the reasonable amount billed for all tasks in this matter.

The Court further finds that a multiplier is not warranted. (See *Pasternack v. McCullough* (2021) 65 Cal.App.5th 1050, 1058 [judge has discretion to award multiplier]; see also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1139 ["a trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation"].)

Costs and Expenses

The Court previously ruled on General Motors' motion to tax costs and only taxed \$22.70. (Order Re: Court Ruling (6/8/26).) The Court therefore awards Plaintiff \$4,123.43 in costs and expenses.

Based on the foregoing, the Court GRANTS Plaintiff Ara Bekmezian's Motion for Attorneys' Fees, Costs, and Expenses in the amount of \$34,863.43,

comprised of \$30,740.00 in attorney fees and \$4,123.43 in costs and expenses.

CONCLUSION

The Court GRANTS Plaintiff Ara Bekmezian's Motion for Attorneys' Fees, Costs, and Expenses in the amount of \$34,863.43, comprised of \$30,740.00 in attorney fees and \$4,123.43 in costs and expenses.

Plaintiff is ordered to give notice
of the Court's ruling within five calendar days of this order.